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Kantian Ethics

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1. Introduction.....	175
2. Kant's ethics: the critical background.....	175
3. Kant's ethics: universal law and the construction of duty.....	176
4. Kant's ethics: respect for persons.....	178
5. Kant's ethics: the problems of freedom, religion and history....	179
6. 'Kant's ethics'.....	181
7. Kantian Ethics.....	183
8. The Kantian legacy.....	184

Kantian ethics

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i Introduction

IMMANUEL KANT (1724–1804) was one of the most important European philosophers since antiquity; many would say simply that he is the most important. He lived a notoriously uneventful life in the remote Prussian town of Königsberg (now Kaliningrad in the USSR), and published an array of significant works in his later years. His writings on ethics are marked by an unswerving commitment to human freedom, to the dignity of man, and to the view that moral obligation derives neither from God, nor from human authorities and communities, nor from the preferences or desires of human agents, but from reason.

His writings are difficult and systematic; to understand them it helps to keep the following three things separate. First, there is Kant's ethics, contained in his writings of the 1780s and 1790s. Secondly, there is 'Kant's ethics', a (mainly unfavourable) account of Kant's ethics developed by his early and influential critics and still often attributed to Kant. This position has an independent life in current debates. Thirdly, there is 'Kantian ethics', a much broader term which covers both Kant's ethics and 'Kant's ethics' and is also used as a (mainly admiring) label for a range of contemporary ethical positions which claim descent from Kant's ethics, but which diverge from Kant in many ways.

ii Kant's ethics: the critical background

Kant's ethics is to be found in his *Groundwork of the Metaphysic of Morals* (1785), *Critique of Practical Reason* (1787), *The Metaphysics of Morals* (1797), (whose two parts, *The Metaphysical Elements of Justice* and *The Doctrine of Virtue* are often published separately), as well as in his *Religion within the Limits of Reason Alone* (1793) and a large number of essays on political, historical and religious themes. However, the fundamental moves that determine the shape of this work are most fully discussed in Kant's masterpiece, *The Critique of Pure Reason* (1781), and an account of his ethics has to be set in the wider context of the 'critical philosophy' which he develops there.

This philosophy is in the first place critical in a negative sense. Kant argues against most of the metaphysical claims of his rationalist predecessors, and in particular against their supposed proofs of the existence of God. On his account our thinking has to be undertaken from a human standpoint, and we can vindicate

no claims about any transcendent reality to which we have no access. The knowledge claims that we can vindicate must therefore be about a reality that meets the condition of being experienceable by us. Hence an inquiry into the structure of our cognitive capacities yields a guide to the aspects of that empirical reality which we can know without referring to particular experiences. Kant argues that we can know a priori that we inhabit a natural world of spatially and temporally extended objects that are causally connected.

Kant is distinctive for insisting that this causal order and our claims to knowledge are restricted to the natural world, but that we have no reason to think that the knowable natural world is all there is. On the contrary, we have and cannot do without a conception of ourselves as agents and as moral beings which makes sense only on the assumption that we have free will. Kant argues that free will and natural causality are compatible, provided that human freedom – the capacity to act autonomously – is not taken to be an aspect of the natural world. Causality and freedom apply in separate domains; knowledge is restricted to the former and morality to the latter. Kant's resolution of the problem of freedom and determinism is the most controversial and fundamental feature of his moral philosophy, and the one that creates the greatest difference between his thought and that of nearly all twentieth-century writing on ethics, including most that is classified as 'Kantian ethics'.

The central question around which Kant arranges his discussion of ethics is 'What ought I do?'. He tries to identify the maxims, or fundamental principles of action, that we ought to adopt. His answer is developed without reference to any supposedly objective account of the good for man, such as those proposed by the perfectionist positions that we associate with Plato, Aristotle and much Christian ethics. Nor does he base his position on claims about whatever subjective conceptions of the good, desires, preferences, or commonly shared moral beliefs we may happen to have, in the way that utilitarians and communitarians do. As in his metaphysics, so in his ethics, he neither introduces claims about a moral reality that transcends our experience nor assigns moral weight to actual beliefs. He repudiates both the realist and theological framework within which natural law theory and accounts of the virtues had been developed, and the appeal to a contingent consensus of feeling or belief on which many eighteenth (and twentieth!) century writers rely.

iii Kant's ethics: universal law and the construction of duty

Kant's central move is to construct the principles of ethics according to rational procedures. Although he begins his *Groundwork* (which is short, famous and difficult) by identifying a *good will* as the only unconditional good, he denies that the principles of good willing can be fixed by reference to an objective good or *telos* at which they aim. Rather than assuming a determinate account of the good, and using this as the basis for determining what we ought to do, he uses an account of the principles of ethics to determine what it is to have a good will. He asks only one rather minimal question: what maxims or fundamental principles could be

adopted by a plurality of agents without assuming *anything* specific about the agents' desires or their social relations? Principles that cannot serve for a plurality of agents are to be rejected: the thought is that nothing could be a moral principle which cannot be a principle for all. Morality begins with the rejection of non-universalizable principles. This idea is formulated as a demand, which Kant calls 'the Categorical Imperative', or more generally the Moral Law. In its best known version it runs: 'Act only on the maxim through which you can at the same time will that it be a universal law'. This is the keystone of Kant's ethics, and is used to classify the maxims agents may adopt.

An example of the use of the Categorical Imperative would be this: an agent who adopts a maxim of promising falsely could not 'will it as a universal law'. For if she were (hypothetically) to do so she would be committed to the predictable result that trust would break down so that she could not act on her initial maxim of promising falsely. This thought experiment reveals that a maxim of false promising is not universalizable, hence cannot be included among the shared principles of any plurality of beings. The maxim of rejecting false promising is morally required; the maxim of promising falsely morally forbidden. It is important to note that Kant does not think false promising wrong because of its presumed unpleasant effects (as utilitarians would) but because it cannot be willed as a universal principle.

The rejection of a maxim of false promising, or of any other non-universalizable maxim, is compatible with a wide variety of courses of action. Kant distinguishes two modes of ethical assessment. In the first place we might evaluate the maxims that agents adopt. If we could discern these we would be able to pick out those who reject non-universalizable principles (so have morally worthy principles) and those who adopt non-universalizable principles, (so have morally unworthy principles). Kant speaks of those who hold morally worthy principles as acting 'out of duty'. However, Kant also holds that we do not have certain knowledge either of our own or of others' maxims. We normally infer agents' maxims or underlying principles from the pattern of their action, yet no pattern will pick out a unique maxim. For example, the activity of the genuinely honest shopkeeper may not differ from that of the reluctantly honest shopkeeper, who deals fairly only out of desire for a good business reputation and would cheat if a safe opportunity arose. Hence for ordinary purposes we can often do no more than concern ourselves with outward conformity to maxims of duty, rather than with claims that an act was done out of such a maxim. Kant speaks of action that would have to be done by anyone who had a morally worthy maxim as action 'in accordance with duty'. Such action is obligatory and its omission forbidden. Evidently, many acts accord with duty although they were not done out of maxims of duty. However, even this notion of outward duty has been defined by reference to being indispensable in a given situation for one who holds underlying principles of acting out of duty. This is in sharp contrast with contemporary accounts of duty which identify it with patterns of outward action. Kant's question 'What ought I do?' therefore receives a double answer. I ought at best to base my life and action on the rejection of non-universalizable maxims, and so lead a morally

worthy life whose acts are done out of duty; but even if I fail to do this I ought at least to make sure to do any acts that would be indispensable if I had such a morally worthy maxim.

Kant's more detailed account of duty introduces (versions of) certain traditional distinctions. He contrasts duties to self and others, and under each of these distinguishes perfect and imperfect duties. *Perfect* duties are complete, in the sense that they hold for all agents in all their actions with all possible others. In addition to refraining from false promising, refraining from coercion and violence are examples of principles of perfect duties to others; they are obligations which can be met for all others, (to which negative liberty rights may correspond). Kant derives principles of *imperfect* obligation by introducing one further assumption: he takes it that we not only have to deal with a plurality of rational agents who share a world, but that these agents are not self-sufficient, hence are mutually vulnerable. Such agents, he argues, could not rationally will that a principle of refusing to help others or of neglecting to develop one's own potential be universally adopted: since they know that they are not self-sufficient, they know that to will such a world would be (irrationally) to will away indispensable means to at least some of their own ends. The principles of not neglecting to help those in need or to develop one's own potential are, however, less complete (hence imperfect) principles of obligation. For we cannot help all others in all needed ways, nor can we develop all possible talents in ourselves. Hence these obligations are necessarily selective as well as indeterminate. They lack counterpart rights and are the basis for imperfect duties. The implications of this account of duties are most fully developed in the *Metaphysics of Morals*, whose first part deals with the principles of justice that are matters of perfect obligation and whose second part deals with the principles of virtue that are matters of imperfect obligation.

iv Kant's ethics: respect for persons

Kant develops his basic lines of thought along a number of parallel (he claims equivalent) tracks. The Categorical Imperative is formulated in a number of strikingly different versions. The formulation discussed above is known as 'The Formula of Universal Law', and is said to be the 'strictest'. The one that has had the greatest cultural impact is the so-called 'Formula of the End in Itself', which demands that we treat 'humanity in your own person or in the person of any other never simply as a means but always at the same time as an end'. This second-order principle is once again a constraint on the maxims we adopt; it is a highly articulated version of a demand for respect for persons. Instead of demanding that we check that all could adopt the same maxims, it demands less directly that we act in ways that respect, so leave intact, others' capacities to act (and so, in effect, leave them able to act on the maxims we ourselves adopt). The Formula of the End in Itself is also used to distinguish two sorts of moral failure. To use another is to treat him or her as a thing or tool and not as an agent. On Kant's account to use another is not merely a matter of doing something the other does not actually want or consent to, but of doing something to which the other *cannot*

consent. For example, deceivers make it *impossible* for their victims to consent to the deceiver's project. Unlike most other appeals to consent as a criterion of legitimate (or just) action, Kant (in keeping with his basic philosophical position) appeals neither to the hypothetical consent of ideally rational beings, nor to the historically contingent consent of actual others. He asks what is needed to make it possible for others either to dissent or consent. This does not mean that actual dissent may be coercively overridden on the grounds that consent has at least been made possible – for the very act of overriding actual dissent will itself coerce, hence make consent impossible. Kant's contention is that the principles we must adopt if we are not to use others will be the very principles of justice that were identified by considering which principles are universalizable for rational beings.

Correspondingly, Kant interprets the moral failure of not treating others as 'ends' as an alternative basis for an account of the virtues. To treat others who are specifically human in their finitude – hence vulnerable and needy – as 'ends' requires that we support one another's (fragile) capacities to act, to adopt maxims and to pursue their particular ends. Hence it requires at least some support for others' projects and purposes. Kant holds that this will require at least a limited beneficence. Although he does not establish an unrestricted obligation of beneficence, such as utilitarians hold to, he does argue for an obligation to reject a policy of refusing needed help. He also argues that systematic failure to develop one's own potential amounts to disrespect for humanity and its capacities for rational agency 'in one's own person'. Failure to treat others or oneself as ends is once again seen as a failure of virtue or imperfect obligation. Imperfect obligations cannot prescribe universal performance: we can neither help all in need, nor develop all possible talents. We can, however, refuse to make indifference of either sort basic to our lives – and may find that rejecting principled indifference demands a lot. Even a commitment of this nature, taken seriously, will demand much. If we honour it, we have on Kant's account shown respect for persons and specifically for human dignity.

The remaining formulations of the Categorical Imperative bring together the perspectives of one who seeks to act on principles that all others could share, and one who seeks to act on principles that respect all others' capacities to act. Kant makes use of traditional Christian rhetoric and of Rousseau's conception of the social contract to formulate the image of a 'Kingdom of Ends' where each is simultaneously legislator and bound by law, where each is autonomous (literally: self-legislating) on condition that what is legislated is respect for others' like status as 'legislators'. For Kant, as for Rousseau, to be autonomous is no mere matter of wilfulness or independence from others or from social conventions; it is to have the mode of self-control that takes account of others' like moral status. To be Kantianly autonomous is to act morally.

v Kant's ethics: the problems of freedom, religion and history

This basic structure of thought is developed in many different directions. Kant

presents arguments to suggest why we should think of the Categorical Imperative as a principle of reason that is binding on us. He explores what is involved in moving from a principle to its concrete application to actual situations. He discusses the relationship between moral principles and our actual desires and inclinations. He develops the political implications of the Categorical Imperative, which include a republican constitution and respect for freedom, especially of religion and speech. He sketches a still influential programme for seeking international peace. He explores how his system of moral thought is connected to traditional religious claims. Many objections of principle and of detail have been raised. Some of the less fundamental objections can be conveniently discussed under the heading of 'Kant's ethics'. However, the most central objection demands independent discussion.

This objection is that Kant's basic framework is incoherent. His account of human knowledge leads to a conception of human beings as parts of nature, whose desires, inclinations and actions are susceptible of ordinary causal explanation. Yet his account of human freedom demands that we view human agents as capable of self-determination, and specifically of determination in accordance with the principles of duty. Kant is apparently driven to a dual view of man: we are both *phenomenal* (natural, causally determined) beings and *noumenal* (non-natural, self-determining) beings. Many of Kant's critics have held that this dual-aspect view of human beings is ultimately incoherent.

In the *Critique of Practical Reason* Kant tackles the difficulty by proposing that provided we accept certain 'postulates' we can make sense of the idea of beings who are part both of the natural and of the moral order. The idea is that if we postulate a benevolent God, then the moral virtue at which free agents aim can be compatible with, indeed proportioned to, the happiness at which natural beings aim. Kant speaks of such perfect co-ordination of moral virtue and happiness as the highest good. Producing the highest good will take a long time: so we have to postulate immortal souls as well as divine providence. This picture has been lampooned time and again. Heine depicted Kant as a bold revolutionary who killed deism: then timidly conceded that practical reason could 'prove' God after all. Nietzsche less kindly likens him to a fox who escapes – then slinks back into the cage of theism.

In later writings Kant dropped both the idea of a guaranteed co-ordination of virtue and rewarding happiness (he thought this might undermine true virtue) and the demand that we postulate immortality, understood as everlasting life (see *The End of All Things*). He offers a variety of historicized versions of the thought that we can make sense of our status as free beings who are part of nature only if we adopt certain postulates. For example, he suggests that we must at least *hope* for the possibility of moral improvement in human history, and so for a *this-worldly* co-ordination of the moral and natural ends of mankind. The various historicized accounts he offers of the postulates of practical reason are aspects and precursors of a this-worldly account of human destiny that we associate with the revolutionary tradition, and specially with Marx. However, Kant did not renounce a religious

interpretation of claims about human origins and destiny. In his late work *Religion within the Limits of Reasons Alone* he depicts Christian scriptures as a temporal narrative which can be understood as a 'symbol of morality'. The interpretation of this work, which got Kant into trouble with the Prussian censors, presents many problems. However, it is at least clear that he does not reintroduce theological claims to serve as a *foundation* for morality, but rather uses his moral theory as a lens for reading scripture.

If Kant did not go back on his original repudiation of theological foundations, an understanding of the connection he sees between nature and morality remains problematic. One way of understanding it may be by relying on the idea, which he uses in *Groundwork*, that nature and freedom do not belong in two independent worlds, or metaphysical realities, but rather constitute two 'standpoints'. We must see ourselves both as parts of the natural world and as free agents. We cannot without incoherence do without either of these standpoints, although we cannot integrate them, and can do no more than understand *that* they are compatible. On such a reading, we can have no insight into the 'mechanics' of human freedom, but can understand that without freedom in the activity of cognition, which lies behind our very claims to know, a causally ordered world would be unknown to us. Hence it is impossible for us to think freedom away. For practical purposes this may be enough: for these we do not need to *prove* human freedom. However, we are left trying to conceptualize the hiatus between the natural order and human freedom, and must also commit ourselves to some version of the 'postulates' or 'hopes' that connect the two. At the very least a commitment to acting morally in the world depends on assuming (postulating, hoping) that the natural order is not wholly incompatible with moral intentions.

vi 'Kant's ethics'

Many other criticisms of Kant's ethics recur so often that they have acquired an independent life as elements of 'Kant's ethics'. Some hold that these criticisms do not apply to Kant's ethics, others that they are decisive reasons for rejecting Kant's position.

(1) *Formalism*. The commonest charge against Kant's ethics is the allegation that the Categorical Imperative is empty, trivial or purely formal and identifies no principles of duty. The charge has been widely made by Hegel, by J. S. Mill and in many contemporary works. On Kant's own view the demand for universalizable maxims is a demand that our fundamental principles be fit for adoption by all. This condition can seem pointless: for cannot *any* well-formed act-description be prescribed by a universal principle? Are principles such as 'steal when you can' or 'kill when it isn't risky' universalizable? This *reductio ad absurdum* of universalizability is achieved by replacing Kant's Categorical Imperative with a different principle. The Formula of Universal Law demands not just that we formulate a universal principle incorporating some act-description that applies to a given act. It demands that an agent's maxim, or fundamental principle, be such that the

agent can 'will it as universal law'. The test requires commitment to the normal, predictable consequences of principles to which the agent is committed and to normal standards of instrumental rationality. When maxims are non-universalizable this is typically because commitment to the consequences of their universal adoption would be incompatible with commitment to the means of acting on them (e.g. we cannot be committed both to the results of universal false promising, and to preserving the means to promising, hence to false promising).

Kant's account of universalizability differs from related principles (universal prescriptivism, Golden Rules) in two major respects. First, it does not refer to what is desired or preferred, not even to what it is desired or preferred should be universally done. Second, it is a procedure only for picking out the maxims that must be rejected if the fundamental principles of a life or a society are to be universalizable. Non-universalizable principles are identified in order to discover the side constraints on the more specific principles agents may adopt. These side constraints enable us to identify more specific but still indeterminate principles of obligation. (For a different account of universalizability, see Article 40, UNIVERSAL PRESCRIPTIVISM.)

(2) *Rigorism*. This is the claim that Kant's ethics, far from being empty and formalistic, leads to rigidly insensitive rules, and so cannot take account of differences between cases. However, universal principles need not mandate uniform treatment; indeed they may mandate differentiated treatment. Principles such as 'taxation should be proportionate to ability to pay' or 'the punishment must fit the crime' are universal in scope but demand differentiated treatment. Even principles that do not specifically mandate differentiated treatment will be indeterminate, so leave room for differentiated application.

(3) *Abstraction*. Those who concede that Kant's arguments identify some principles of duty, but do not impose rigid uniformity, often advance a further version of the formalism charge. They will say that Kant identifies ethical principles, but that these principles are 'too abstract' to guide action, hence his theory is not action-guiding. Kant's principles of duty certainly are abstract, and he does not provide a detailed set of instructions for following them. There is no moral algorithm of the sort utilitarianism might provide if we had sufficiently full information about all options. Kant emphasizes that the application of principles to cases involves judgement and deliberation. He also maintains that principles are and must be abstract: they are side-constraints (not algorithms) and can only guide (not make) decisions. The moral life is a matter of finding ways of acting that meet all obligations and violate no moral prohibitions. There is no automatic procedure for identifying such actions, or all such actions. However, for moral practice we begin by making sure that the specific acts we have in mind are not incompatible with acts on maxims of duty.

(4) *Conflicting grounds of obligation*. This criticism points out that Kant's ethics identifies a set of principles which may come into conflict. The demands of fidelity

and of helpfulness, for example, may clash. This criticism is true of Kant's ethics, as for any ethic of principles. Since 'trade-offs' between differing obligations are not part of the theory, there is no routine procedure for dealing with conflicts. On the other hand, since the theory is only a set of side constraints on action, the central demand is to find some action that falls within all constraints. Only when no such action can be found does the problem of multiple grounds of obligation arise. Kant has nothing very illuminating to say about these cases; the charge made by advocates of virtue ethics (e.g. Bernard Williams, Martha Nussbaum), that he does not say enough about the regret that may be appropriate when some moral commitment has unavoidably to be violated or neglected, is apposite.

(5) *Place of the inclinations*. A group of serious criticisms of Kant's moral psychology occurs throughout the secondary literature. In particular it is said that Kant requires that we act 'out of the motive of duty', hence not out of inclination, and so is driven to the claim that action which we enjoy cannot be morally worthy. This grim interpretation, perhaps first suggested by Schiller, involves a tangle of difficult issues. By acting 'out of the motive of duty', Kant means only that we act on a maxim of duty and so experience a feeling of 'reverence for the law'. This reverence is a *response* to and not the *source* of moral worth. It is compatible with action being in line with our natural inclinations and so enjoyed. On one view the apparent conflict between duty and inclination is only epistemological; we can know for sure that we act out of duty only if inclination is lacking. On other views, the issue runs deeper, and leads to a more serious charge that Kant cannot account for wrongdoing.

(6) *No account of wrongdoing*. This charge is that Kant can allow only for free action which is fully autonomous – i.e. done on a principle that meets the constraint that all others can do likewise – and for action which reflects only natural desires and inclinations. Hence he cannot allow for free, imputable but wrong action. Clearly Kant thinks he can give an account of wrong doing, for he frequently gives examples of imputable wrongdoing. This charge probably reflects a failure to keep separate the claim that free agents must be capable of acting autonomously (in the distinctive Rousseauian or Kantian sense which links autonomy with morality) with the claim that free agents always act autonomously. Imputability requires the capacity to act autonomously but this capacity may not always be exercised. Wrongful acts are indeed not autonomous, but they are chosen rather than inflicted mechanically by our desires or inclinations.

vii Kantian ethics

Kant's ethics and the image of his ethics which often replaces it in modern debates do not exhaust Kantian ethics. This term is now often used to cover any of a range of quasi-Kantian positions or commitments in ethics. Sometimes the usage is very broad. Certain writers will talk of Kantian ethics when they have in mind theories

of rights, or more generally action-based rather than result-based moral thinking, or any position that treats the right as prior to the good. In these cases the points of resemblance to Kant's ethics are fairly general – for example, concern with universal principles and respect for persons, or more specifically for human rights. In other cases a more structural resemblance may be indicated – for example, a commitment to a single non-utilitarian supreme moral principle, or to the view that ethics is based on reason. The specific understanding of Kantian ethics varies very much from context to context.

The most definite Kantian programme in ethics recently has been that of John Rawls, who has labelled one stage in the development of his theory 'Kantian constructivism'. Many features of Rawls's work are clearly Kantian, above all his conception of ethical principles as determined by constraints on principles chosen by rational agents. However, Rawls's constructivism assumes a quite different account of rationality from Kant's. Rawls identifies the principles that *would* be chosen by instrumentally rational beings to whom he ascribes certain sparsely specified ends – not the principles that *could* consistently be chosen regardless of particular ends. This produces far-ranging differences between Rawls's work, even at its most Kantian, and Kant's ethics. Others who use the label 'Kantian' in ethics are even more loosely related to Kant – for example, many of them offer no account of the virtues, or even deny that an account is possible; many treat rights rather than obligations as fundamental; nearly all rely on a preference-based theory of action and an instrumental account of rationality, all of which are incompatible with Kant's ethics.

viii The Kantian legacy

Kant's ethics remains the paradigmatic and most influential attempt to vindicate universal moral principles without reference to preferences or to a theological framework. The hope of identifying universal principles, which is so apparent in discussions of justice and in the human rights movement, is constantly challenged by communitarian and historicist insistence that we cannot appeal beyond the discourse and traditions of particular societies, and by utilitarian insistence that principles derive from preferences. For those who find neither of these routes compelling, the neo-Kantian slogan 'Back to Kant' remains a challenge which they must explore or refute.

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